Reply to a data request: ask the person to confirm their identity

A reply that asks only for what is needed to confirm who is asking, when there is a real doubt, and explains what happens to the information.

FOR

Organisations in the EU, Iceland, Liechtenstein or Norway that receive a request under Articles 15 to 21 (Article 12(6) does not name Article 22) of the GDPR (the EU General Data Protection Regulation): the data protection officer, privacy team or small-business owner who answers. Notes for Italy and Germany where the rules differ.

NOT COVERED

National rules on copying identity cards, which the EDPB says some Member States have (para. 78 and footnote 39), were not checked for Italy. In Germany, an identity card may be copied only by the holder or with their consent, and the copy must be clearly and permanently recognisable as a copy (section 20(2) of the Act on Identity Cards, Personalausweisgesetz, PAuswG; see the note on Germany after the table); the rules on passports (Passgesetz) were not checked. Requests made through a representative or for a child (EDPB section 3.4).

LAW AS OF

GDPR (Regulation (EU) 2016/679) as published on EUR-Lex, read 7 Nov 2026; EDPB Guidelines 01/2022 on the right of access, version 2.1 (adopted 28 March 2023, minor corrections 30 May 2024); Regulation (EEC, Euratom) 1182/71, Article 3; Italian Data Protection Code (Legislative Decree 196/2003) as on Normattiva (updated to the act published on 19 Feb 2026), read 4 to 8 Nov 2026; Garante complaint page (docweb 4535524), read 7 Nov 2026; BDSG as published on gesetze-im-internet.de, last amended by the Act of 12 May 2026, read 7 Nov 2026; Personalausweisgesetz (PAuswG) section 20 as published on gesetze-im-internet.de, read 8 Nov 2026

VERSION

1.1, 8 November 2026

When to use this

Only when there is a real doubt about who is asking. The law allows it *"where the controller has reasonable doubts concerning the identity of the natural person making the request referred to in Articles 15 to 21"*, and then only for *"additional information necessary to confirm the identity of the data subject"* (Article 12(6)). The organisation *"should use all reasonable measures to verify the identity of a data subject who requests access"*, but *"should not retain personal data for the sole purpose of being able to react to potential requests"* (recital 64, one of the GDPR's introductory explanations).

Ask only for what is needed

The European Data Protection Board (EDPB), the body of all EU data protection regulators, says *"the controller cannot request more personal data than is necessary to enable this authentication"* (EDPB Guidelines 01/2022, para. 65, p. 25). The check must be proportionate, taking into account *"the type of personal data being processed ..., the nature of the request, the context within which the request is being made, as well as any damage that could result from improper disclosure"* (para. 70, p. 26).

SITUATION	WHAT THE EDPB SAYS	WHERE
The person already has an account or is known to you	*"it is disproportionate to require a copy of an identity document in the event where the data subject making a request is already authenticated by the controller"*	para. 73, p. 27
Quicker checks	E-mail or text message *"containing confirmation links, security questions or confirmation codes"*	para. 75, p. 27

SITUATION	WHAT THE EDPB SAYS	WHERE
Copy of an identity card	*"it should be considered inappropriate, unless it is necessary, suitable, and in line with national law"*	para. 74, p. 27
If an identity card is needed	The person may hide data not needed, such as the photo, serial number and machine-readable zone; *"Generally, the date of issue or expiry date, the issuing authority and the full name matching with the online account are sufficient"*	para. 76, p. 27
After the check	Do not keep the copy; the EDPB recommends a note such as *"ID card was checked"*	para. 79, p. 29

GERMANY

Germany: copies of identity cards

An identity card (*Personalausweis*) may be copied only by the holder, or by others with the holder's consent, and the copy must be clearly and permanently recognisable as a copy. In German: *"Der Ausweis darf nur vom Ausweisinhaber oder von anderen Personen mit Zustimmung des Ausweisinhabers in der Weise abgelichtet werden, dass die Ablichtung eindeutig und dauerhaft als Kopie erkennbar ist."* (section 20(2) of the Act on Identity Cards, *Personalausweisgesetz*, PAuswG). The same subsection says that people other than the holder may not pass the copy on to third parties, that an organisation may collect or process personal data from the copy only with the holder's consent (*Einwilligung*), and that the general data protection rules still apply. The official English translation on gesetze-im-internet.de predates this rule, so the German text is quoted. The rules on passports (*Passgesetz*) were not checked.

The clock

For access requests, *"there may be a suspension in time until the controller has obtained the information needed from the data subject, provided the controller has asked for additional information without undue delay"* (EDPB Guidelines 01/2022, para. 159, p. 50). Send this letter straight away, not near the deadline.

If the person cannot be identified

Where the purposes of the processing do not require the organisation to identify people (Article 11(1)) and it shows it cannot identify the person, it informs them *"if possible"*, and Articles 15 to 20 do not apply unless the person gives additional information that allows identification (Article 11(2)). In those cases it may refuse to act only if it *"demonstrates that it is not in a position to identify the data subject"* (Article 12(2), second sentence).

The letter

Keep only the options that fit. Offer the lightest check that removes the doubt. Option (4), an identity document, only if it is necessary and national law allows it. In option (4), keep the request to mark the copy for Germany (section 20(2) PAuswG, see the note on Germany above) and delete the word in brackets; elsewhere, delete the sentence or keep it without the brackets. In Germany, data taken from the copy may be used only with the holder's consent (section 20(2) PAuswG), so tell the person what you will do with the copy. For the doubt, write for example: the request came from an e-mail address that is not on our records. For the details already held, write for example: your customer number and the date of your last order. The pause in the time limit is the EDPB's view for access requests: "there may be a suspension in time until the controller has obtained the information needed from the data subject, provided the controller has asked for additional information without undue delay" (EDPB Guidelines 01/2022, para. 159, p. 50). Delete this sentence for requests other than access. Send this letter straight away.

ORGANISATION NAME, ADDRESS,
DATA PROTECTION CONTACT OR DATA PROTECTION OFFICER

NAME OF THE PERSON, ADDRESS OR E-MAIL THEY USED

DATE

Subject: Your request: we need to confirm your identity

Your request of DATE OF THE REQUEST, received on DATE RECEIVED. Our reference: REFERENCE.

Thank you for your request. Before we can answer, we need to be sure we are giving information to the right person. THE DOUBT, IN ONE SENTENCE

Please confirm your identity in one of these ways:

(1) reply from the e-mail address registered with us, PARTLY MASKED ADDRESS;

(2) log in to your account at LINK and confirm the request there;

(3) confirm ONE OR TWO DETAILS WE ALREADY HOLD;

(4) show or send a copy of an identity document. You may hide the photo, the document number, the machine-readable zone and any details not needed; we need only your full name, the issuing authority and the expiry date. Please mark the copy clearly as a copy (Germany). We will delete the copy as soon as we have checked it.

We will use this information only to confirm your identity for this request (Article 5(1)(b) and (c) GDPR).

For a request for access, the European Data Protection Board considers that the time to answer may be paused until we receive your reply. If we have not heard from you by DATE, we will NEXT STEP.

Kind regards,

NAME AND ROLE OF THE PERSON SIGNING, for ORGANISATION NAME

Not proportionate, in the EDPB's examples

Asking for an identity document from a customer with a password-protected online account (Example 13), or for a notarised confirmation of identity at a bank branch (Example 14) unless necessary, suitable and in line with national law (EDPB Guidelines 01/2022, p. 28).

How the organisation handles it: Handling data requests: procedure and register. Its replies: confirm receipt, confirm identity, extend the time limit, refuse or charge a fee, the answer.

The letters from the person: access, rectification, erasure, restriction, portability, objection, automated decisions.

Sources

GDPR, Regulation (EU) 2016/679 (EUR-Lex) • Used for: Articles 12, 15 to 22, 37, 38, 77 and 79, recitals; Fino's copy of each article is linked in the text

EDPB Guidelines 01/2022 on data subject rights: right of access, version 2.1 • Used for: How regulators read the right of access, time limits and identity checks (paragraphs and pages cited)

Regulation (EEC, Euratom) 1182/71 on periods, dates and time limits (EUR-Lex) • Used for: How a period in months is counted

Fino: Response timeline • Used for: Counting the one-month deadline

Act on Identity Cards (Personalausweisgesetz, PAuswG), section 20 (gesetze-im-internet.de) • Used for: Germany: rules on copying an identity card